

SENATE No. 1241

The Commonwealth of Massachusetts

PRESENTED BY:

Pavel M. Payano

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act related to educational programming for incarcerated emerging adults.

PETITION OF:

NAME:

Pavel M. Payano

DISTRICT/ADDRESS:

First Essex

SENATE No. 1241

By Mr. Payano, a petition (accompanied by bill, Senate, No. 1241) of Pavel M. Payano relative to educational programming for incarcerated emerging adults. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1687 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act related to educational programming for incarcerated emerging adults.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 48 of Chapter 127, as appearing in section 80 of chapter 69 of the acts of 2018, is
2 hereby amended by striking the second paragraph and inserting in place thereof the following:-

3 The commissioner and administrators of state prisons and county facilities shall
4 maximize a diverse range of educational programming for all emerging adults, ages 18-25. The
5 commissioner shall ensure that at least one educational program leading to the award of a high
6 school equivalency certificate including high school equivalency testing opportunities, and credit
7 that can be applied to high school graduation, is available to persons who are committed to the
8 custody of the department or to a county correctional facility and who have not obtained a high
9 school degree or equivalency. In addition to each such facility providing at least one general high
10 school equivalency (HiSet) class and high school equivalency testing opportunities and classes

11 that can earn credit toward high school graduation, each facility shall also include specialized,
12 age-appropriate educational classes for emerging adults, including all individuals ages 18 thru
13 25, for both individuals who have and have not obtained a high school degree or equivalency,
14 including but not limited to college readiness and college credit classes, and/or workforce
15 readiness and vocational classes. Access to workforce development, vocational and employment
16 training opportunities in the community shall be maximized as available. All emerging adults
17 shall have the opportunity to access at least four hours of programming daily at least five days a
18 week; at least four hours daily shall be for programming that will be out of cell and congregate,
19 meaning more than one person together without barriers between them to ensure the most
20 conducive educational learning environment. Time allowed for in-cell learning through tablets
21 shall be maximized and considered as additional time toward the already required daily four
22 hours of out of cell learning. Preference for all educational programming will be provided for
23 innovations in the delivery of such programming that include, but not limited to, partnerships
24 with nonprofits and educational institutions that specialize in serving emerging adults and draw
25 upon the talents of staff with lived experiences similar to those incarcerated.